

July 14, 2017



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11624
(SEVENTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain waste paints and paint related materials, Class 8, in metal or plastic pails, packed in cubic yard boxes, plastic rigid wall bulk containers, dump trailers, and roll-off containers. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.173(b) (2) and 173.242 in that inner metal or plastic packagings of not over 7 gallons packed in cubic yard boxes, dump trailers, plastic rigid wall bulk containers, and roll-off containers are not authorized, except as specified herein; § 172.301(a) in that each inner packaging is not marked with the proper shipping name and identification number; § 172.301(c) in that each inner packaging is not marked with the special permit number; and § 172.400(a) in that each inner packaging is not labeled.

5. BASIS: This special permit is based on the application of Clean Harbors Environmental Services, Inc., dated November 3, 2012, submitted in accordance with § 107.105, the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Paint or Paint related material (preceded by the word "waste" if applicable)	8	UN3066	II and III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Inner metal or plastic packagings of not over 7 gallons each, packed in cubic yard boxes, dump trailers, plastic rigid wall bulk containers, and roll-off containers. The cubic yard boxes, dump trailers, plastic rigid wall bulk containers, and roll-off containers must be liquid tight through design or by the use of plastic lining materials.

b. OPERATIONAL CONTROLS -

(i) All packagings inside cubic yard boxes, dump trailers, plastic rigid wall bulk containers, and roll-off containers must be blocked and braced to prevent movement during transportation that could cause the container to open or fall over.

(ii) No leaking containers may be transported under the terms of this special permit, unless overpacked in a UN specification package capable of containing the leakage or in accordance with § 173.12.

c. Only waste materials may be transported under the terms of this special permit.

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8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - The outside of each yard box, dump trailer, plastic rigid wall bulk containers and roll-off container must be plainly and durably marked with "DOT-SP 11624" at least 2 inches in height.

d. The marking requirements for each inner packaging in accordance with § 172.301(a) and (c) are waived.

e. LABELING - The labeling of each inner packaging in accordance with § 172.400(a) is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO:KFW/NICKS